ANTI-CORRUPTION COMMISSION

COMMISSION MEETING FORM

MEETING NO.	142nd Commission Meeting
DATE:	30 August, 2023
TIME:	02:00 PM
VENUE:	Druk Dradhir Khang

#	AGENDA & DISCUSSIONS	DECISIONS
1	Apprise regular HR updates - HRS *The HRO apprised the Commission on the decisions of the 112th HRC meeting held on 29 August, 2023, including the following:* - *Approval for Karma T Wangchug to 2023 Asia Meeting for Econometric Society;* - *Nomination of Kelden Jamtsho for Leadership and Executive Development Programme conducted by ICAC;* - *Termination of Puran K Dural's contract;* - *Approval of Ugyen Penjor's voluntary resignation and proposal to revisit the relieving date, without having to retain for full three months, as a distinct case;* - *Request for NOC to appear BCSE 2023 and the decision to reprimand those three, along with any other officials, for failing to inform the supervisor and the HRC prior to appear PE.*	**The Commission noted the decisions and specifically directed the HRC to revise the Active Workforce (AWe) Policy to rationalize relieving dates of the separating official based on the objective of completion of works and in the interest of organization.** **Further, the Commission directed HRS to determine whether there are others who appeared PE without prior notice and accordingly apprise the HRC and Commission for appropriate action.** **The Commission decided the following:** - **In response to the ECB's request, nominated Dasho A Karma Rinzin and Director Wangay as panelists for their recruitment interview.** - **Formed a committee to review the appeal/s for moderation exercise, consisting of Sonam Drukpa (CIPO), Tashi Jamtsho (CPIO) and Pema Tenzin (CRO).**
2	Present terminal review of the 12th FYP – PPD *The presentation copy of the review for 2 programmes, 6 AKRAs and 13 KPIs is as attached.*	**The Commission endorsed the review and directed PPD to share the report with the Cabinet Secretariat.**
3	Apprise on compilation of restitution details – PPD *As per the directive of the Commission, a team comprising of officials from the CFD, EMD, LD and PPD worked on compilation and verification of details of restitutions that were ordered and secured since the inception of the ACC. However, the team*	**The Commission directed the CFD and PPD to only include restitution details for the one FY (2022-2023), for the last Annual Report. However, directed the same team to continue the work, led by CFD. This shall require validation and support of OAG, relevant courts, and the investigators.**

	apprised the challenges related to non-availability of data (judgement copies), among others.	
4	Apprise on prevention advisory -PD *PD presented the draft prevention advisory on medicine import licensing and monitoring based on the system study.*	**The Commission commented and directed PD to revise the draft, including incorporation of the findings from the NCBS 2023.**
5	Present guidelines for CSO integrity focal person – PD *With adoption of the Bhutan CSO Accountability Standards (BCAS 2023), the ToR to facilitate the integrity focal persons in implementing various tools were prepared.*	**Endorsed the ToR with following comments:** - **Revise introduction of the ToR to incorporate legal provisions of integrity mainstreaming;** - **The integrity focal of CSOs to also be the focal for all anti-corruption and integrity tools such as AD, Gift rules, IVS, among others;** - **The ToR to also include the responsibilities of the ACC, including the need to provide trainings/technical assistance, and lead the revision of the ToR, as and when required.**
6	Present the justifications for AD non-declarants – ADMD *ADMD presented the non-declaration justification and its proposed actions.*	**The recommended actions by the ADMD on the 39 justifications, based on the earlier decisions, were endorsed by the Commission. Further, decisions on the remaining seven justifications were as follows:** - **impose penalty for Phuntsho, Shanti, and Norbu;** - **write to Dzongkhag Administration related to Jambay, Duptho, and Dawa; and** - **validate Pema's roles as youth manager.** **Further, with regards to 362 pending non-declarants, Commission directed ADMD to forward the details to IVS and RAA if they fail to comply by 30 September.**
7	Any others: *Legal Opinion on what can the ACC do in relation to suspension of two justices of the High Court for alleged collusion and miscarriage of justice (copy attached).*	**The Commission decided to review the recommendation at an appropriate time, given the on-going inquiry by the Government.**

Commissioner **Commissioner** **Chairperson**

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